

Memorandum

To: State Board Members

From: Melissia Dorsey

Date: January 22, 2026

Re: Final Adoption of Regulations

At the next board meeting, we will present for final adoption proposed changes to the following COMAR provision¹ (see enclosure):

1. 33.02.03.05 Election Judges' Training Programs
2. 33.04.02.01-.04 & .06 Inspection and Copying of Public Records; Confidentiality of Certain Information
3. 33.07.04.02 Election Day Activities; Order and Decorum – Cell Phones, Pagers, Cameras
4. 33.07.07.01-.03 Election Day Activities; Challengers and Watchers
5. 33.07.11.02 Compensation of Election Judges
6. 33.07.12 Election Day Activities; Language Assistance Program
7. 33.08.01.02 Canvassing, Definitions; General Provisions – Board Responsibilities
8. 33.08.01.02-1 Canvassing, Definitions; General Provisions – Board Counsel
9. 33.11.03.08 Absentee Ballots; Issuance and Return – When Ballots are Timely
10. 33.16.05.03 Provisional Ballots; Canvassing of Ballots – Disposition - Disposition of Provisional Ballot Applications
11. 33.21.03.04 Special Elections by Mail; Issuance and Return – Transmission of Ballots

The proposed changes to the regulations were adopted at the October 23, 2025 meeting. They were published in the December 12, 2025 edition of the *Maryland Register* (Vo. 52, Issue 25), and the public comment period closed on January 12, 2025. No public comments were received.

If you have any questions before the next meeting, please contact me. I will also be available at the board meeting to answer any questions.

Attachment.

¹ Italicized text is new section or language.

Title 33 STATE BOARD OF ELECTIONS
Subtitle 02 MEETINGS AND TRAINING
Chapter 03 Judges' Manuals and Training

Authority: Election Law Article, §§2-102(b)(4), 2-202(b), 10-205, and 10-206, Annotated Code of Maryland

.05 Judges' Training Program.

A.-B. (text unchanged)

C. Requirements for Training Compensation.

(1) A local board shall pay at least \$50 to an election judge who completes the training program~~[], and serves as an election judge in the election for which the training was offered.~~

(2) If the training program includes a training class that is offered through virtual instruction or online delivery and a hands-on practice session, the election judge shall complete the hands-on practice session to be entitled to compensation.

(3) An election judge who is required to complete a training program prior to both a primary and general election is entitled to compensation for each training program, *so long as the election judge serves as an election judge in the election for which the training was offered.*

Explanation: This regulation implements HB586, enacted in 2025, requiring election judges to work during the voting period to earn pay for training.

Title 33 STATE BOARD OF ELECTIONS
Subtitle 04 INSPECTION AND COPYING OF PUBLIC RECORDS
Chapter 02 Confidentiality of Certain Information

Authority: Election Law Article, §§2-102(b)(4) and 3-506(a)(2); *General Provisions 4-201(b) and 4-301(a)(2)(i)*, *State Government Article, §§7-309 and 7-310*; [State Government Article, §§10-613(b) and 10-615(2)(i)]; Annotated Code of Maryland

.02 Persons Entitled to Seek Confidentiality

A.-D. (text unchanged)

E. *Participants in Address Confidentiality Programs. Subject to notification to the State or a local board of participation in the program described in § 3–2403 of the Courts and Judicial Proceedings Article, or the program described in § 7-303 of the State Government Article, an individual's information shall be designated as confidential.*

[E]F. (text unchanged)

.03 Applications

A. (text unchanged)

B. Form.

(1) A person seeking to keep the person's residence address, telephone number, and email address of a record confidential shall apply in writing on a form approved by the State Administrator.

(2) The form shall be filed:

- (a) At the appropriate local board if the applicant wishes to keep the applicant's residence address, telephone number, and email address provided on a voter registration application confidential; or,
- (b) At the State or local board at which the applicant filed the certificate of candidacy or statement of organization if the applicant wishes to keep the applicant's residence address, telephone number, or email address provided on a certificate of candidacy or statement of organization confidential.
- (3) *A person seeking confidentiality need not complete the form if:*
 - (a) *A person is a participant in the program described in § 3–2403 of the Courts and Judicial Proceedings Article, and the Administrative Office of the Courts notifies the State Board; or*
 - (b) *A person is a participant in the program described in § 7-303 of the State Government Article, and the Secretary of State notifies the State Board.*

C. (text unchanged)

.04 Consideration of Request

A. Discretion Required.

- (1) Except as provided in §A(2) and §A(3) of this regulation, the appropriate board shall determine, in its discretion, whether to grant a request for confidentiality.
- (2) The appropriate board shall automatically grant a request made by the State on behalf of a victim or witness under Regulation .02D(2) of this chapter.
- (3) *Exceptions to Discretion. Board review shall not be required to designate as confidential the identifying information of the following:*
 - (a) *Participants in the program described in § 3–2403 of the Courts and Judicial Proceedings Article; or*
 - (b) *Participants in the program described in § 7-303 of the State Government Article.*

B.-C. (text unchanged)

.06 Status Reviews

A.-C. (text unchanged)

D. The provisions of this regulation shall not apply to designations of confidentiality for participants in the program described in § 3–2403 of the Courts and Judicial Proceedings Article.

Explanation: These changes to this regulation clarify statewide address confidentiality procedures. The regulation reflects recent legislation regarding judges and their families. Additionally, clarification is provided regarding differences in processes used for individuals who seek confidentiality through SBE versus those who seek confidentiality through the Address Confidentiality Program of the Secretary of State.

Title 33 STATE BOARD OF ELECTIONS

Subtitle 07 ELECTION DAY ACTIVITIES

Chapter 11 Election Judges

Authority: Election Law Article, §§2-102(b)(4), 2-202(b), 10-202, 10–203, and 10–205, Annotated Code of Maryland

.02 Compensation of Election Judges

A.-C. (text unchanged)

D. Alternative to Compensation. A public high school student who earns hours toward the service-learning requirement for graduation under COMAR 13A.03.02.05 for their time in service as an election judge shall not be compensated for that service under subsections A and B of this regulation.

Explanation: This regulation implements HB586, enacted in 2025, which requires students who serve as election judges to choose between earning pay or service credit.

Title 33 STATE BOARD OF ELECTIONS

Subtitle 08 CANVASSING

Chapter 01 Definitions; General Provisions

Authority: Election Law Article, §§2-102(b)(4), 2-202(b), 11-201, [and] 11-301, *and* 11-302(a), Annotated Code of Maryland

.02 Board Responsibilities.

A. In General.

(1) - (3) (text unchanged)

(4) Oath or Affirmation.

(a) [In an election where there is no early voting, each member of the local board shall, not later than 5 p.m. on election day, take and subscribe the following oath or affirmation:] *Each member of the local board shall take and subscribe the following oath or affirmation: I,, do swear, (or affirm as the case may be,) that I will support the Constitution of the United States; and that I will be faithful and bear true allegiance to the State of Maryland, and support the Constitution and Laws thereof; and that I will, to the best of my skill and judgment, diligently and faithfully, without partiality or prejudice, execute the office of Board of Canvassers, according to the Constitution and Laws of this State.*

(b) The oath or affirmation shall be administered and recorded by the clerk of the circuit court.

(c) *The oath shall expire 35 days after election day.*

(5) *Timing of Oath or Affirmation.*

(a) *Each member of the local board shall take and subscribe the oath or affirmation not later than 9:00 a.m. 8 business days before the first day of early voting; or*

(b) *If a local board of elections has obtained a waiver under Election Law §11-302(b)(1), Annotated Code of Maryland, each member of the local board shall take and subscribe the oath or affirmation, not later than 5:00 p.m. on election day.*

B. (text unchanged)

Explanation: The change to this regulation updates the process of swearing in of the LBE Boards of Canvassers to reflect the need for canvassers to be sworn in prior to early

canvassing. It also clarifies the expiration of the oath, which will be 35 days after the local board certifies the election.

.02-1 Board Counsel.

A. Oath or Affirmation Required.

(1) Each local board counsel shall take and subscribe the following oath or affirmation: I,, do swear, (or affirm as the case may be,) that I will support the Constitution of the United States; and that I will be faithful and bear true allegiance to the State of Maryland, and support the Constitution and Laws thereof; and that I will, to the best of my skill and judgment, diligently and faithfully, without partiality or prejudice, serve as counsel to the Board of Canvassers, according to the Constitution and Laws of this State.

(2) The clerk of the circuit court or chairman of the local board shall administer and record the oath or affirmation in §A(1) of this regulation to the local board counsel.

(3) The oath or affirmation shall be administered [on or before the day of the election but not later than 5 p.m. on that day.] *as follows:*

(a) Not later than 9:00 a.m. 8 business days before the first day of early voting; or

(b) If a local board of elections has obtained a waiver under Election Law §11-302(b)(1), Annotated Code of Maryland, not later than 5:00 p.m. on election day.

(4) The oath shall expire 35 days after election day.

B. (text unchanged)

Explanation: The change to this regulation updates the process of swearing in of Local Board Counsel to reflect the need for counsel to be sworn in prior to early canvassing. It also clarifies the expiration of the oath, which will be 35 days after the local board certifies the election.

Title 33 STATE BOARD OF ELECTIONS

Subtitle 11 ABSENTEE BALLOTS

Chapter 03 Issuance and Return

Authority: Election Law Article, §§2-102(b)(4), 2-202(b), 2-305, 9-303, 9-305, 9-306, 9-310, 11-301, 11-302, and 11-304, Annotated Code of Maryland

.08 When Ballots Are Timely.

A. - B. (text unchanged)

C. Untimely Ballots. [A ballot that is not timely received as provided in this regulation may not: be counted.]

(1) A ballot that is not timely received as provided in this regulation shall:

(a) Be retained separately from timely ballots; and

(b) Not be counted.

(2) A ballot that is received after the local board certifies the election may not be:

(a) Presented for rejection to the board of canvassers;

(b) Presented to the local board of elections; or

(c) Counted.

Explanation: This regulation codifies the existing practice of the local boards for untimely mail-in ballots received after canvass is completed. Specifically, the board of canvassers need not be reconvened to reject the ballots.

Title 33 STATE BOARD OF ELECTIONS

Subtitle 16 PROVISIONAL VOTING

Chapter 05 Canvass of Ballots—Procedures

Authority: Election Law Article, §§2-102(b)(4), 2-202(b), 3-305(e), 3-306, 9-402, 9-403, 9-404, 9-406, and 11-303(c) and (e), Annotated Code of Maryland

.03 Disposition of Provisional Ballot Application

A.-B. (text unchanged)

C. Acceptance of Provisional Ballot Application. The local board shall accept a provisional ballot application only if:

- (1) The voter is registered to vote, including a voter whose registration status was pending in the precinct register but who satisfied the verification requirement before the start of the provisional canvass;
- (2) The voter signed the provisional ballot application;
- (3) A voter who was required under COMAR 33.07.06 to provide personal identification information satisfied the identification requirement before the start of the provisional canvass;
- (4) In a primary election[, the party affiliation the voter indicated on the provisional ballot application is the party affiliation of the voter's record;]:
 - (a) *The party affiliation indicated by the voter on the provisional ballot application is the party affiliation of the voter's record; or*
 - (b) *The party affiliation indicated by the voter on the provisional ballot application is not the party affiliation of the voter's record and the ballot has a nonpartisan Board of Education contest.*

(5)-(8) (text unchanged)

D. Full or Partial Count of Provisional Ballot. If the local board accepts the provisional ballot application, the local board shall count:

- (1) The entire provisional ballot if the ballot is the correct ballot style for the voter based on the address *and party* on the provisional ballot application; or
- (2) Only votes for the specific contests for which the voter is entitled to vote based on the address *and party* on the provisional ballot application, if the ballot is not the correct ballot style for the voter based on the address on the provisional ballot application.

E. (text unchanged)

Explanation: This regulation implements HB 839 of the 2025 MGA Session. The law requires LBEs to count votes for nonpartisan Board of Education contests, even if the voters vote the wrong party's ballot, in a primary election.

Title 33 STATE BOARD OF ELECTIONS
Subtitle 21 SPECIAL ELECTIONS BY MAIL
Chapter 03 Issuance and Return

Authority: Election Law Article, §§2-102, 9-501, 9-502, and 9-504—9-506, Annotated Code of Maryland; 52 U.S.C. § 20302

.04 Transmission of Ballots.

A. - B. (text unchanged)

C. Mailing Deadline. A local board shall mail vote-by-mail ballots:

- (1) To absent uniformed services voters and overseas voters, at least 45 days before the day of the special election; and
- (2) To all other voters, at least [14] 30 days before the day of the special election.

Explanation: SB262, enacted in 2025, changed the timing of special elections, and lengthened the time in advance of special elections when mail ballots must be sent. This change to this regulation reflects that new timing.

Title 33 STATE BOARD OF ELECTIONS
Subtitle 7 ELECTION DAY ACTIVITIES
Chapter 12 Language Assistance Program

Authority: Election Law Article, §§2-102(b)(4); 2-202(b); and 15.5-104, Annotated Code of Maryland

.01 Definitions

A. *In this chapter, the following terms have the meanings indicated.*

B. *Terms defined.*

- (1) *“Designated language” has the meaning stated in Election Law Article, § 15.5–101(b), Annotated Code of Maryland.*
- (2) *“Licensed translation software services” means a tool or service that provides interpretation of spoken communication between designated languages and English.*
- (3) *“Limited English proficiency” has the meaning stated in Election Law Article, § 15.5–101(c), Annotated Code of Maryland.*
- (4) *“Translated” means the process of a trained individual converting from one written language to another while preserving the original meaning.*
- (5) *“Voting materials” has the meaning stated in Election Law Article, § 15.5–101(e), Annotated Code of Maryland.*

.02 Timing for Determination of Significant Need for Language Assistance. *Not later than 8 months preceding a Statewide primary election, the State Board shall determine whether there is significant need for language assistance in a county.*

.03 Designating Forms and Instructions Necessary for Voting

A. *Timing. Not later than 7 months preceding a Statewide primary election, the State Board may determine if forms and instructions not named in Election Law Article, § 15.5–101(e), Annotated Code of Maryland, shall be designated as necessary to voting.*

B. Procedure. The State Board shall consider recommendations from the State Administrator when designating forms and instructions necessary to voting.

.04 Notice of Significant Need for Language Assistance

A. To the public. Not later than 6 months preceding a Statewide primary election, the State Board shall publish its determinations of significant need for language assistance that includes:

- (1) A list of local boards affected; and*
- (2) The designated languages.*

B. To Local Government officials. Not later than 6 months preceding a Statewide primary election, the State Administrator shall provide notice of the determination of significant need for language assistance by the State Board to:

- (1) The local board of elections; and*
- (2) The Chief Financial Officer of the jurisdiction.*

.05 Local Board Requirements

Upon determination by the State Board of a significant need for language assistance, the local board shall:

A. No later than 11 weeks preceding a Statewide primary election, post translated, downloadable voting materials in designated languages on its website.

B. Place a State Board approved sign, in each designated language, in each early voting center and polling place.

C. Ensure the availability in each early voting center or polling place of:

- (1) Licensed translation software services; and*
- (2) A tool or document that communicates in all designated languages and explains how to use the licensed translation software service.*

D. Make a reasonable effort to:

- (1) Recruit election judges who can communicate in designated languages;*
- (2) Assign election judges who speak the designated languages to each early voting center;*
- (3) Determine which polling places are most likely to serve voters who speak designated languages; and*
- (4) Assign election judges who speak the designated languages to work in polling places that are most likely to serve voters who speak designated languages.*

E. Include information about the language assistance program in training materials and programs for election judges and local board of elections staff.

.06 Language Assistance in Addition to Required Assistance

A. Form.

(1) The State Board shall:

(a) Prescribe a form for a local board to request approval to provide language assistance services in addition to those required by Regulation .05 of this chapter; and

(b) Provide the form to local boards not later than 1 year preceding a Statewide primary election.

(2) The form shall include questions about:

- (a) The population to be served;*
- (b) The proposed services;*
- (c) Reasons for the local board's request; and*
- (d) Whether approving the request would impose additional costs or duties on the State Board.*

(3) A local board seeking to provide language assistance services that exceed requirements shall:

(a) Submit the State Board prescribed form for each additional service or language which it proposes to provide; and

(b) Request State Board approval at least 6 months preceding a Statewide primary election during which the local board proposes to provide additional language assistance services.

B. Approval of additional language assistance.

(1) Upon receipt of a form requesting approval to provide additional language assistance, the State Administrator shall review and make a recommendation to the State Board to accept or reject the request.

(2) The State Board shall:

(a) Vote on a local board's proposal within 30 days of receipt of a form requesting approval to provide additional language assistance; and

(b) Within 2 days of its vote on a request to provide additional language assistance, notify the local board of the outcome of the vote.

Explanation: This regulation implements HB983, enacted in 2025, which requires in-language assistance in elections in counties with substantial populations of eligible voters who are not fully fluent in English. These regulations describe the notification of coverage and support SBE will provide to LBEs, and the services LBEs will provide where coverage applies.

Title 33 STATE BOARD OF ELECTIONS
Subtitle 07 ELECTION DAY ACTIVITIES
Chapter 04 Order and Decorum

Authority: Election Law Article, §§2-102(b)(4), [and] 2-202(b), and 15.5-104, Annotated Code of Maryland

.02 Cell Phones, Pagers, Cameras, etc.

A. (text unchanged)

B. Exceptions. This regulation does not apply to:

(1) Cameras used by media representatives as long as the media representatives are recording polling place operations and not a screen or ballot;

(2) Cellular telephones, pagers, or computer equipment used by election officials or law enforcement officers, when acting in their official capacities; or

(3) Cellular telephones or other electronic devices used by a voter:

(a) To provide lawful proof of residency or identification as required by this title;

(b) To review electoral information to assist in marking the voter's own ballot prior to casting; [or]

(c) To record a digital image of the voter's own marked ballot prior to casting for personal use if it records only the ballot and may not be used in violation of Election Law Article, §16-206, Annotated Code of Maryland [.] or,

(d) To communicate through a translator or use licensed translation software services as described in Election Law Article, §15.5–103(B), Annotated Code of Maryland.

Explanation: This amendment allows for use of cell phones and electronic devices in polling places to obtain interpretation services, including from LanguageLine Solutions.

Title 33 STATE BOARD OF ELECTIONS
Subtitle 07 ELECTION DAY ACTIVITIES
Chapter 07 Challengers and Watchers

Authority: Election Law Article §§2-102(b)(4), 2-202(b), 10-303 and 10-311, Annotated Code of Maryland

.01 Designating Entities.

A. State Board as Designating Entity. The State Board may:

- (1) Designate **[an individual]** *a registered Maryland voter* as an accredited challenger or watcher if the individual submits a written request that includes polling places in more than one county; and
- (2) Require the individual to attend a training session, read any State Board issued information, or both.

B. Local Board as Designating Entity. A local board may:

- (1) Designate **[an individual]** *a registered Maryland voter* as an accredited challenger or watcher if the individual submits a written request that includes polling places in its jurisdiction; and
- (2) Require the individual to attend a training session, read any State Board issued information, or both.

C. Other Designating Entities.

(1) If a designating entity other than the State Board or a local board intends to distribute instructions to the individual or individuals it designates, the designating entity:

[(1)] (a) May not provide information that conflicts with the Election Law Article, Annotated Code of Maryland, Title 33 of COMAR, and other State Board issued information; and

[(2)] (b) May submit a written draft of the instructions to the State Board for review.

(2) *If a designating entity is a group of voters supporting or opposing a candidate, principle, or proposition on the ballot that may designate challengers and watchers, that group of voters shall be a political action committee or a person who is required to file a disclosure under Election Law Article §13-306 or 13-307, Annotated Code of Maryland.*

D. Certificate.

(1) A designating entity shall provide each challenger or watcher it designates with a signed certificate, in the form prescribed by the State Board.

(2) The certificate shall be signed by:

(a) If a candidate is the designating entity, the candidate;

(b) If a political party is the designating entity, an officer, executive director of the entity, or other person authorized to sign on behalf of the entity; **[or]**

(c) If a group of voters is the designating entity, the chairman or treasurer of the political committee~~].~~

(d) If the group of voters is the designating entity, the Treasurer of an independent expenditure entity as defined in COMAR 33.20.01.01,

(3) The signature of the designating entity shall be:

(a) An original signature; or

(b) A copy of an original signature.

(4) **[A designated entity shall provide the local board with:]** *Except as provided in paragraph E, and not later than 1 business day before the start of early voting, a designating entity shall provide the local election director with:*

(a) *A copy of a completed certificate with an original signature;* **[Copies of completed certificates; or]**

- (b) A list of individuals designated as challengers and watchers[.]; and;
- (c) A list of all polling places the challengers and watchers will attend.
- (5) Failure to submit the required documents in subparagraph (4) of this regulation to the local election director may result in the nonaccreditation of the challenger and watcher.

E. Substitutions

- (1) A designating entity may substitute names of accredited challengers and watchers up to and including on election day only after making a submission to the local election director in paragraph D.
- (2) The designating entity shall notify the local election director of the substitution in writing prior to the substitution.

.02 Permissive Activities of Accredited Challengers or Watchers.

A. In General. An accredited challenger or watcher may perform the activities defined in Election Law Article, §10-311(b), Annotated Code of Maryland.

B. Before Voting.

- (1) Except as provided in §B(2) of this regulation, before voting begins on *each day of early voting or* election day, an accredited challenger or watcher may observe the election judges setting up the voting room, including:
 - (a) Observing the election judges print voting system reports and review these reports;
 - (b) [Verifying] *Observing* the number of voters who have been checked-in and the number of votes that have been cast; and
 - (c) [Verifying] *Observing* that required security seals have been applied on the voting system.
- (2) An election judge shall not permit an accredited challenger or watcher entry to the *early voting center or* polling place during the 30 minutes immediately before the opening of the polls.

C. During Voting Hours.

- (1) (a) The Chief Judges shall determine the location of accredited challengers or watchers in the voting room.
- (b) When determining the location of the accredited challengers and watchers in the voting room, the Chief Judges shall ensure:
 - (i) The accredited challenger or watcher may see and hear each person as the person offers to vote; and
 - (ii) The efficient management of the voting room.
- (c) The Chief Judges are not required to locate the accredited challengers and watchers directly behind the check-in table or in a position where they can directly view the electronic pollbook.
- (2) During voting hours, an accredited challenger or watcher [shall] *may*, accompanied by a Chief Judge and at a convenient time for the election judges, *observe*:
 - (a) [Verify the] *The* security seals on voting units to which voters have not been assigned; and
 - (b) [Verify the] *The* number of voters who have been checked in to vote.

D. After Voting.

- (1) To observe the post-voting hours procedures, an accredited challenger or watcher shall be in the polling place before voting hours end.
- (2) During this time, an accredited challenger or watcher may *observe*:
 - (a) [Observe the] *The* election judges print voting system reports and review these reports; *and*
 - (b) [Verify that] *That* required security seals have been applied on the voting system.[; and]

[(c) Observe the transmission by modem of election results if the local board has instructed the Chief Judges to perform this task.]

.03 Prohibited Acts of Challengers or Watchers.

A. Prohibited Acts. A challenger or watcher may not:

- (1) (text unchanged)
- (2) Bring into a polling place any device listed in COMAR 33.07.04.02, [or] political materials, *or campaign materials*[, newspapers, or news magazines];
- (3)-(7) (text unchanged)

B. (text unchanged)

Explanation: These regulation revisions provide clarification that challengers and watchers should be registered Maryland voters. They also specify who can sign certificates on behalf of a central committee, outline the requirements and deadline for the submission of paperwork for accreditation of challengers and watchers, and how to submit documentation for substitutions. Additionally, the revisions seek to provide clearer wording for the permissive and prohibited activities and remove the text that describes the transmission by modem of election results as we no longer transmit results by modem at the polling places. Finally, they define a group of registered voters who may be challengers and watcher.